

Mr. Bunty & 15 Others v. State of U.P. & 5 Others

Allahabad High Court · Division Bench · 30 May 2023 · Writ - C No. 16687 of 2023 · **Notice to unserved respondents; counters called; tagged with Writ-C No. 17587 of 2023; stay deferred; Clause 4.9 not decided**

HEADNOTE

Sixteen residents challenged the respondents' insistence that a colony of more than 4,000 flats switch from a single-point connection to a multiple-point connection and, with connected writs, the validity of Clause 4.9 of the U.P. Electricity Supply Code, 2005 as substituted by the Thirteenth Amendment, 2018 (notification dated 10.8.2018). The amendment was said to violate Sections 53, 55 and 177 of what the order calls the U.P. Electricity Act, 2003, and to exceed the U.P. Electricity Regulatory Commission's power to notify Part B of Clause 4.9. Notices dated 6.12.2022 and 24.4.2023, issued by respondent no. 3 to respondent nos. 4 and 6, were also challenged. On 19.5.2023 the Court was told that the change would reduce charges for individual flat owners, that the Commission had ordered a single-point connection to be respected only where 51 per cent or more of the residents insist on continuing it, and that the petition was a proxy of the builder; the petitioners were given time to show that a majority wished to keep the single-point connection. On 30.5.2023 the Court held only that the dispute required a response: notice to unserved respondent nos. 4 and 6, six weeks for counters and two weeks for rejoinder, the writ and connected matters tagged with Writ-C No. 17587 of 2023 (Apex Dream Homes Pvt. Ltd.) for 17.7.2023, and the prayer for stay deferred until affidavits were exchanged. Clause 4.9, the 51 per cent stipulation, and the notices were not construed.

FACTUAL SUMMARY

Mr. Bunty and fifteen other residents filed Writ-C No. 16687 of 2023 against the State of U.P. and five others. They challenge a decision that residents of a colony of more than 4,000 flats switch from a single-point connection to a multiple-point connection. On 19 May 2023 the Court was told that the change would lower individual charges, that the Commission continues a single-point connection only if 51 per cent or more of the residents insist, and that the petition was a proxy of the builder. Counsel sought time to show that a majority wanted to keep the single-point connection.

The petition also attacks Clause 4.9 of the U.P. Electricity Supply Code, 2005, substituted by the Thirteenth Amendment notified on 10 August 2018, as ultra vires Sections 53, 55 and 177 and beyond the Commission's power to notify Part B, and notices of 6 December 2022 and 24 April 2023 issued by respondent no. 3 to respondent nos. 4 and 6. The same issues were said to be pending in Writ-C No. 17587 of 2023 (Apex Dream Homes Pvt. Ltd.).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

Vires of amended Clause 4.9 and of single-point to multiple-point notices left for affidavits; writ tagged and stay deferred

QUESTION

Is Clause 4.9 of the U.P. Electricity Supply Code, 2005, as substituted by the notification dated 10.8.2018, ultra vires, and can the respondents insist that colony residents switch from a single-point connection to a multiple-point connection?

HOLDING

Not decided. The writ and connected petitions question the validity of Clause 4.9 as brought in by the U.P. Electricity Supply Code (Thirteenth Amendment), 2018, contend that the Commission lacks power to specify or notify the measures in Part B, seek a declaration that the notification dated 10.8.2018 is ultra vires, and challenge notices dated 6.12.2022 and 24.4.2023 issued by respondent no. 3 to respondent nos. 4 and 6. The Court held that the dispute can be adjudicated only after the respondents' response, issued notice to unserved respondent nos. 4 and 6, allowed six weeks for counter-affidavits and two weeks thereafter for rejoinder, tagged this writ and the connected matters with Writ-C No. 17587 of 2023 for 17.7.2023, and directed that the prayer for stay be considered after exchange of affidavits. Clause 4.9 was not construed. ¶ 2-9

QUALIFIER

Interlocutory order of 30.5.2023. The writ remains pending. An earlier sheet of 19.5.2023 adjourned the single-point challenge so the petitioners could show that a majority of flat holders wished to continue it.

FLAG Source PDF concatenates four unnumbered-then-numbered sheets: 17.5.2023 (list as fresh on 19.5.2023 with records of Writ-C No. 4545 of 2019; Ashwani Kumar Mishra, J. and Vinod Diwakar, J.), 19.5.2023 (single-point to multiple-point; 51 per cent recital; proxy objection; adjourned to 24.5.2023; same bench), 24.5.2023 (listed for 30.5.2023 on counsel's request; Pritinker Diwaker, C.J. and Suneet Kumar, J.), and 30.5.2023 paras 1–9 (notice, affidavits, tagging, stay deferred; Pritinker Diwaker, C.J. and Ashutosh Srivastava, J.). Coram is the 30.5.2023 bench. The order says 'U.P. Electricity Act, 2003'; the pleaded section numbers are those of the Electricity Act, 2003. Catalog hits on EA2003::153, IBC::53, UP-2005::6.12, clause-6.12, clause-4.9A, and the pre-CIRP waterfall tag are false positives. Writ-C No. 4545 of 2019 is called for on 17.5.2023 only; no direction from it is recited or applied.

HOLDING-UNIT · EA2003::53

Sections 53, 55 and 177 pleaded against amended Clause 4.9; not construed

QUESTION

Does Clause 4.9, as amended by the notification dated 10.8.2018, violate Sections 53, 55 and 177?

HOLDING

Not decided. The petitioners contend that amended Clause 4.9 is violative of Sections 53, 55 and 177 of the Act the order calls the U.P. Electricity Act, 2003, and that the Commission lacks power to specify or notify the measures in Part B. The Court called for counters and did not construe any of those sections. ¶ 2-3

QUALIFIER

Pleaded ground only. No finding on the Commission's regulation-making power.

FLAG The order's label 'U.P. Electricity Act, 2003' is recorded as written. Sections 55 and 177 are co-pleaded with Section 53 and are equally unconstrued; they are not given separate units. No other Electricity Act section is named.

PRINCIPLE TAGS

amended-clause-4.9-multi-point-release-mandate-2018 The writ questions Clause 4.9 as substituted by the Thirteenth Amendment notified on 10.8.2018, including the Commission's power to notify Part B, and seeks to have that notification declared ultra vires. The Court issued notice and called for affidavits without construing the amendment. ¶ 2-3

clause-4.9-single-point-to-multipoint The petition assails the respondents' insistence that colony residents switch from a single-point connection to a multiple-point connection, and challenges the notices of 6.12.2022 and 24.4.2023. The conversion was not adjudicated; the writ was adjourned, then tagged with a connected matter raising identical issues. ¶ 2-9

single-point-to-multipoint-requires-51-percent-consumers On 19.5.2023 the Court was informed that the Commission had ordered a single-point connection to be respected only where 51 per cent or more of the residents insist on continuing it, in a colony of more than 4,000 flat holders of whom sixteen had challenged the decision. The petition was adjourned so the petitioners could show that a majority wished to continue the single-point connection. The Court did not adopt or apply that stipulation. ¶ order of 19.5.2023

procedural-listing-no-construction After listings on 17.5.2023, 19.5.2023 and 24.5.2023, the 30.5.2023 order issued notice to respondent nos. 4 and 6, granted six weeks for counters and two weeks for rejoinder, tagged the writ with Writ-C No. 17587 of 2023 for 17.7.2023, and deferred stay. No provision was construed. Lead authorities: *Apex Dream Homes Pvt. Ltd. v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd. and 2 Others*. ¶ 4-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.9 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, AS SUBSTITUTED BY THE NOTIFICATION DATED 10.8.2018, AND PART B OF THAT CLAUSE, ARE ULTRA VIRES SECTIONS 53, 55 AND 177, OR BEYOND THE COMMISSION'S POWER TO NOTIFY

Raised as the substantive challenge. The Court held that it can be adjudicated only after the respondents file their response. ¶ 2-3

NOT DECIDED — VALIDITY OF THE NOTICES DATED 6.12.2022 AND 24.4.2023 ISSUED BY RESPONDENT NO. 3 TO RESPONDENT NOS. 4 AND 6

Challenged in the writ. Notice was issued to the unserved noticees; the notices were not quashed or upheld. ¶ 2-4

NOT DECIDED — WHETHER 51 PER CENT OR MORE OF THE FLAT HOLDERS INSIST ON CONTINUING THE SINGLE-POINT CONNECTION, AND WHETHER THE COMMISSION'S STIPULATION TO THAT EFFECT GOVERNS THIS COLONY

Recited to the Court on 19.5.2023 as the content of a Commission order. The petitioners were allowed to supplement the petition to show majority support. No finding was recorded on 30.5.2023. ¶ order of 19.5.2023

NOT DECIDED — WHETHER THE PETITION IS A PROXY OF THE BUILDER AND DOES NOT REPRESENT THE FLAT HOLDERS

Urged as an objection on 19.5.2023. Not decided. ¶ order of 19.5.2023

NOT DECIDED — THE PRAYER FOR STAY

Expressly deferred until after exchange of affidavits. ¶ 9

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Apex Dream Homes Pvt. Ltd. v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd. and 2 Others</i> Writ-C No. 17587 of 2023 Allahabad High Court	A coordinate Bench has entertained a writ involving identical issues and, after inviting counter and rejoinder affidavits, fixed it for 17.7.2023.		Respondent	Referred

SCJ-3290 · Mr. Bunty & 15 Others v. State of U.P. & 5 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.